

GZ: 2022-0.479.809 dated January 9, 2023 (Case Number: DSB-D130.217)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and similar), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the respondent has not been pseudonymized, as processing the content of the decision in a way that would make it impossible or significantly more difficult to identify the respondent would only have been possible by largely eliminating the comprehensibility of the content of the decision. The confidentiality right (§ 1 DSG) and the confidentiality interest of the respondent, a legal entity whose lawful actions have been established in the decision, are countered by the statutory mandate according to § 23 para. 2 DSG, whereby this is a decision of fundamental importance for the public, as some legal questions have been addressed here for the first time. The decision was therefore included in the decision documentation of the Data Protection Authority, despite the impossibility of complete pseudonymization, due to the predominance of the public interest in publication.]

DECISION

SPREAD

The Data Protection Authority decides on the data protection complaint of Mr. Walter A*** (complainant) dated February 14, 2019 against the Wikimedia Foundation Inc. (respondent), represented by B*** Rechtsanwälte GmbH in 1010 Vienna, regarding the alleged violation of the right to deletion as follows:

- The complaint is dismissed as unfounded.

Legal bases: Art. 3, Art. 4, Art. 5, Art. 17, Art. 51 para. 1, Art. 57 para. 1 lit. f as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 9, 18 para. 1 as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended; §§ 13 para. 8, 59 para. 1 of the General Administrative Procedure Act 1991 (AVG), BGBl. No. 51/1991 as amended; § 1 of the Media Act (MedienG), BGBl. No. 314/1981 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In the initiating submission dated February 14, 2019, improved on February 21, 2019, the complainant stated that he considers his right to deletion to have been violated by the respondent, as it did not comply with his deletion request dated June 29, 2018. The complainant explained that the respondent is not a media company, but rather a social network where users can publish and edit contributions anonymously and without editorial oversight or editorial statutes. The original dataset concerning him was not created by the respondent based on its research, but rather was inadequately created by him. However, he no longer wishes to be part of the network of the respondent and insists on the deletion of all his data. Furthermore, these are sensitive data, as they concern his date of birth, his origin, and his family circumstances. Attached to the complaint were the request for deletion dated July 29, 2018, as well as the response of the respondent.

2. In the statement dated October 29, 2020, which was received in identical content by letter on November 3, 2020, the respondent, represented by counsel, summarized that the respondent is solely a foundation established in the USA and under US law, which has created the online encyclopedia www.wikipedia.org. The respondent has neither establishments in the EU nor group companies or other affiliated enterprises. The foundation also does not offer goods or services to individuals – such as the complainant. The respondent itself does not select the topics that are written about. These are determined by the contributors themselves, who rely on publicly accessible sources, such as newspaper articles or other contributions. The respondent merely publishes the encyclopedia entries, which are neither created by it nor fall under its responsibility, but rather are authored and edited by a community of contributors. There is also no oversight. Therefore, the respondent concludes that the GDPR is not applicable. Since, according to the legal opinion of the respondent, the GDPR is not covered by the territorial scope of the GDPR, it is not required to appoint a representative in

accordance with Art. 27 GDPR. Regardless of the non-applicability of the GDPR, the data processing is nonetheless lawful due to a legitimate interest of the public. The respondent operates a platform that enables the preservation and further development of the arguably most well-known online encyclopedia through voluntary and unpaid authors. The contributions have always been created in multiple authorship and are continuously edited and discussed according to the principle of collaborative writing. Currently, Wikipedia has over 50 million contributions on all conceivable topics. The data processing does not occur in the interest of the respondent, but in the interest of the general public for information. Furthermore, the data processing of personal data, which the complainant has broadly incriminated, occurs solely for journalistic purposes. The matter at hand thus falls within the core area of journalistic activity. Moreover, the complainant is a public figure, among other things an author, filmmaker, cameraman, and director, about whom there are numerous contributions. He also operates a website with the URL http://waltera***.com. There is therefore no doubt that there is a public interest in his person. The processed data of the complainant possess relevance and timeliness. The information about the complainant is not only visible on the platform of the respondent but also on his own homepage and other publicly accessible websites (for example, https://www.imdb.com/name/nm*4**0*9/). The right to deletion is also not absolute and is thus not applicable.

3. In the statement dated November 20, 2020, the complainant essentially argued that he maintains his complaint and that the GDPR is applicable. This is evident solely from the fact that the respondent operates under the term Wikipedia with corresponding country codes or domain endings in individual countries. If one were to follow the argumentation of the respondent, the GDPR would not be applicable to Facebook, Twitter, or other media. Furthermore, the complainant stated that the original entry on Wikipedia was created by him and not by the community of the respondent. It is also a fact that the entries on the platform are edited by third parties, which in fact represents an editorial function. This is a characteristic of a media provider. Additionally, the respondent offers services in the form of data about living as well as various other individuals and generates revenue from this. The information on the platform is also processed in a country-specific manner. In the statement of the respondent dated October 29, 2022, it was also confirmed on page 3, paragraph 3, that it is a social network in which the design of the content is left to the user without the need to use a real name. While the authors work voluntarily and pro bono, the respondent operates commercially, which is a significant characteristic of a social network. Therefore, the respondent is not a public law medium. The dataset created by him has not been updated since July 1, 2020. He himself cannot update his own dataset because this is denied to him by the respondent or the anonymous authors. In conclusion, the complainant referred to the fact that the assertions of the respondent are very contradictory. On the one hand, it claims to be merely a platform in the form of a social network, while on the other hand, the deletion is denied for journalistic reasons.

4. In the request for a supplementary statement dated January 7, 2021, the complainant was asked by the data protection authority to explain how his dataset does not correspond to current standards.

5. In the statement dated January 13, 2021, the complainant stated that the last registered films are from the year 201*. Since then, he has participated in a documentary, a feature film, and a series. [Note by editor: Information from the complainant regarding his roles at two organizations removed for pseudonymization reasons.] Furthermore, there are also errors in the platform of the respondent in his "vita." In the films "F****" and "G***," he did not serve as the lead cameraman. The films "J***," "K***," "L***," and "M****" are listed with incorrect titles – "N****" [Note by editor: Name of the main character] is not part of the film titles. The linked pages to the films of the N*** series are all deficient or erroneous. On none of the pages is the producer Xaver V***, O****film, mentioned, who had a significant role in the creation and appearance of the films. In the film "M***," completely incorrect cameramen are listed – moreover, he is cited as the sole author.

The list of deficiencies shows that the activity of Wikipedia "editors" consists solely of copy & paste from other websites. A journalistic verification of the information does not take place, nor is it kept up to date.

6. The data protection authority requested the complainant in a letter dated March 31, 2021, to explain

why he was denied the opportunity to amend or correct the errors in his contribution on the website of the respondent.

7. The complainant replied in his statement dated April 9, 2021, that the editors of the respondent would not allow him to make changes to the entry. In particular, a user with the pseudonym "Spacehawk**4" prevented the changes without providing any editorially relevant reasons. Between June 2013 and February 2014, he unsuccessfully attempted to make changes or deletions himself; however, he was then blocked as a user and has since been unable to edit his own contribution. He subsequently requested the deletion of the entry from the respondent, which was denied. The version histories of the complainant's page as well as the block can be viewed at the links:

https://de.wikipedia.org/wiki/Walter_A***?action=history&offset;=*5**25*7 and

https://xtools.wmflabs.org/topedits/de.wikipedia.org/Spacehawk**4/0/Walter%20A***.

8. The respondent stated in its response dated April 27, 2021, that Wikipedia is not intended for individuals to disseminate information or opinions about themselves or to promote themselves. Rather, the online encyclopedia aims to provide neutral and factual information about relevant topics and individuals to the general public. The complainant originally created the entry himself and has since repeatedly attempted to add new information about his activities. Changes that do not comply with the guidelines of the respondent are corrected by the Wikipedia community. On January 7, 2009, the complainant attempted to add an unverifiable website (www.hof***.at). On June 22, 2013, the complainant added further information without providing corresponding sources, thereby effectively engaging in self-promotion. Since the changes made did not comply with the guidelines, they were deleted by the community and documented accordingly. Only after the changes aimed purely at self-promotion were not accepted did the complainant decide to reduce the entry about him to "Walter A*** is a filmmaker and author" or to delete the entry. However, the complainant is a person known in Austria. For this reason, the community of the respondent decided that there is a fundamental public interest and that a factual neutral representation of his activities could contribute to the exchange of information. The complainant was dissatisfied with the outcome and repeatedly attempted to modify the entry. This ultimately led to a suspension of his account.

9. The respondent reiterated in its supplementary statement of April 28, 2021, referring to its statement of October 29, 2020, that the GDPR is not applicable in this case. The processing does not involve a service and is not a product offered to the complainant. Even if the GDPR were applicable, the affected individuals would have no right to deletion, as the media privilege would apply. Furthermore, the contribution about the complainant consists only of general and neutral information about a well-known public figure. Additionally, the complainant's data is publicly accessible, partially disclosed by the complainant himself. The respondent's website is the first collective, universal, multilingual, and non-profit online encyclopedia. The relevance principle applies to the respondent. This means that no articles are added if they do not have sufficient encyclopedic value. Only when the criteria of this principle are met, the contribution shows no quality deficiencies, and another contributor has reviewed the contribution, will it be published. The community consists of experienced editors as well as individuals who have just registered. However, this is not a raw data collection, not a directory of natural persons, not a rumor mill or a platform for advertising, propaganda, or conspiracy theories, and also not a platform for self-presentation. There are also specific relevance criteria for each language version of the website. In the German version, there are detailed guidelines for assessing the relevance of living persons.

The respondent can be actively involved in disputes or can also be engaged by the community. This includes, among other things, persistent vandalism, such as repeated editing of articles with nonsense or inappropriate content, or changing IP addresses to circumvent the IP bans established by the community, or harassment of other users or community members. The respondent only intervenes when the community is unable to resolve the issue itself for any reason.

Any user of the respondent's website—whether registered or not—can contribute to the online encyclopedia. A registered user can choose a username and also has the option to provide their email address. As long as the user does not disclose their real name through the provided data, the respondent cannot know the actual identity of the person behind it. If the user is not registered, only

their IP address is used as a username. Contributors are free to create new content or to supplement, correct, move, merge, or delete contributions from others. A backup system is also in place, allowing for the restoration of a previous version of an entry. The online encyclopedia is not a platform for articles that contributors write about themselves in their own interest. Hosting and curating such content is not a service that the respondent offers to the affected individuals.

In regard to the contribution of the complainant, it should be stated that this is a short and completely factual, non-controversial article that primarily covers the professional career. No information has been disclosed that is not available on the complainant's own page or on the IMDb platform. Some users have access to special technical tools aimed at protecting the encyclopedia. These are administrators who function as "Admins," "Sysop," or "Operator." They have the ability to decide on the deletion of irrelevant contributions, secure articles, or block users who violate the fundamental principles. These individuals are volunteers and are not in any employment relationship or other contractual relationship with the respondent. Therefore, they are as free in their contributions as any other contributor.

The respondent is not involved in the creation of new articles or contributions to existing articles. No editorial controls are exercised by the respondent. Furthermore, the respondent does not play a special role in the publication of contributions nor does it ensure their publication. Likewise, the respondent does not have an editor-in-chief, an editorial board, or an administrative office or similar institution. As already mentioned, any contributor – any normal user of the website – can review and edit a contribution (including the approval of new articles). The respondent does not review, control, or decide on content, except in rare cases, a so-called Office Action (vandalism), when all measures of the community fail.

The respondent focuses on fundraising, distributing grants, controlling servers, developing and deploying software, as well as public relations to support Wikimedia projects. The respondent provides the technical tools for the majority of contributions. In principle, the deletion of articles can only be carried out by the administrators; however, the respondent has intervention rights. In practice, deletion occurs in cases of copyright violations, for child protection reasons, or in cases where the safety of individuals is at risk. Generally, this happens in all those cases where swift action is required.

10. In the context of the statement dated May 10, 2021, the complainant noted in the concluding hearing of the parties that he does not recognize any new informational value in the submission of the respondent. At the beginning of the letter, reference is made to freedom of the press while simultaneously pointing out that the respondent does not engage in editorial activity and is therefore not a medium. This argumentation is certainly not conclusive. Six years have now passed between the entry created about him by the complainant and the first attempt to update it. A correct update or deletion can also be expected from the...

****A. Respondent's Position****

The respondent is expected. It also raises the question of why the GDPR would not be applicable when it is explicitly referenced on the Austrian website. In any case, the respondent is not a medium.

****B. Subject of the Complaint****

The subject of the complaint is whether the complainant has been violated in his right to deletion because the respondent refuses to comply with his deletion request dated June 29, 2018.

****C. Findings of Fact****

1. The complainant is an Austrian artist who is known to a broader public in Austria through his role as a filmmaker, screenwriter, and cameraman.

The respondent operates an internet platform under the URL [wikipedia.org](https://www.wikipedia.org), where information on various topics is written or modified by website visitors in the form of a reference work. The respondent has a total of 38 branch associations that have secured the respective country-specific domain endings (e.g., Greece, Sweden, Spain, Finland, Denmark, and Austria) within the European Union. Users are redirected directly to the respondent's website via [wikipedia.eu](https://www.wikipedia.eu). For the other websites, it is initially necessary to enter a search term in the search bar, and only then will users be redirected to the page www.wikipedia.org of the respondent with the country-specific language setting. The website www.wikipedia.at is operated by the Wikimedia Österreich Gesellschaft zur Förderung freien Wissens.

This is a Wikimedia branch association located in Austria at Ö***platz 6*, **** L***dorf, which was founded on February 2, 2022. Wikimedia Österreich supports the websites of the respondent.

Screenshot from the Whois query regarding the website with the URL www.wikipedia.at
(Formatting not displayed 1:1):

[Note by the editor: The document presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed. It indicates, among other things, that the association "Wikimedia Österreich Gesellschaft zur Förderung freien Wissens" is the registrant (owner) of the domain.]

Screenshot from the Whois query regarding the website with the URL www.wikipedia.org
(Formatting not displayed 1:1):

[Note by the editor: The document presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed. It indicates, among other things, that the respondent is the registrant (owner) of the domain.]

Screenshot from the Whois query regarding the website with the URL www.wikipedia.fr
(Formatting not displayed 1:1):

[Note by the editor: The document presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed. It indicates, among other things, that the association "ASSOCIATION WIKIMEDIA FRANCE" is the registrant (owner) of the domain.]

Screenshot regarding the availability of the European domain endings of "wikipedia"
(Formatting not displayed 1:1):

[Note by the editor: The document presented here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed. It indicates, among other things, that the domain name "Wikipedia" is registered in all the listed national versions.]

****Assessment of Evidence:**** These findings are based on the initial submission of the complainant dated February 14, 2019, improved on February 21, 2019, as well as the statement of the respondent represented by counsel dated October 28, 2019, and the official research conducted on December 12, 2022, on the websites with the URL <https://who.is/whois> and www.world4you.com/de.

2. Every user of the respondent's website can – regardless of whether they are registered or not – write, correct, supplement, or delete a contribution. Administrators are elected by the community of users. They have extended rights (the right to delete and secure irrelevant contributions, block users). The administrators and other contributors are not in any employment relationship or other contractual relationship with the respondent. The respondent does not have an editor-in-chief, an editorial board, or an administrative office, nor any similar institution. The contents of individual user contributions are not reviewed, controlled, or decided upon in advance by the respondent.

The respondent is primarily responsible for financing (raising funds), server control, software development and deployment, grant distribution, and public relations for all projects. Furthermore, it has enforcement rights in rare extraordinary exceptional cases (so-called "Office Actions"), where rapid action is required (copyright infringements, child protection, threats to the safety of individuals) or for conflicts of interest that cannot be resolved by the users themselves within its platform. In these cases, there is not enough time for the normal community processes due to the short time frame for action.

****Assessment of Evidence:**** These findings are based on the statement dated April 28, 2021, from the respondent.

3. The complainant created an entry about himself on the website of the respondent at the URL https://de.wikipedia.org/wiki/Walter_A*** on February 26, 2006, at 10:44 under his username Waltera***.

Screenshot of the original source text from February 26, 2006, at 10:44 (formatting not represented 1:1):

[Note by the editor: The document reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed. It indicates, among other

things, that a person with the username Waltera*** made a change to the Wikipedia entry concerning the complainant on February 26, 2006.]

Assessment of evidence: These findings are based on the initiating submission of the complainant dated February 14, 2019, improved on February 21, 2019, as well as on the statement of the legally represented respondent dated October 28, 2019, and the official research conducted on December 12, 2022, and December 14, 2022 (accessing the URL:

https://de.wikipedia.org/w/index.php?title=Walter_A***&oldid;=*5*7**2).

4. The entry about the complainant has been modified by both himself and several users between February 26, 2006, and June 13, 2021. The complainant's entry was last edited on June 13, 2021, at 7:54 AM.

Timeline of edits (formatting not represented 1:1):

[Note by the editor: The document reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed.]

Screenshot of the most recent version of the entry about the complainant (formatting not represented 1:1):

[Note by the editor: The document reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of evidence: These findings are supported by the consistent submissions of the parties as well as by the website of the respondent, where it is also possible to compare the individual edits.

5. The complainant submitted a request for deletion to the respondent on June 29, 2018, at 7:50 PM.

Screenshot of the deletion request from June 29, 2018, at 7:50 PM (formatting not represented 1:1):

[Note by the editor: The document reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed. It is addressed to the email address info-de@wikimedia.org and requested the deletion of the "page" specifically identified by a URL containing the Wikipedia entry about the complainant.]

6. The respondent did not comply with the complainant's request.

Assessment of evidence: These findings are based on the undisputed initiating submission dated February 14, 2019, improved on February 21, 2019, by the complainant.

7. The information disclosed about the complainant on the respondent's website is also published on other internet sites. Excerpt from the publicly accessible information on the page

https://noev1.orf.at/magazin/daheiminnoe/****.html (formatting not represented 1:1):

[Note by the editor: The documents reproduced here as facsimiles (graphic files) cannot be pseudonymized with reasonable effort and have therefore been removed. It is an excerpt from an article from the online regional and societal reporting of the Austrian Broadcasting Corporation (ORF), which also references previous works of the complainant.]

Assessment of evidence: These findings are based on the official research conducted on December 14, 2022, on the websites with the URLs https://www.society***.org/ereignisse/a***-walter/,

https://www.mkmnoe.at/****/referentin/walter-a***,

https://freelancer***experts.com/de/Walter-A***_**44*08.html,

https://noev1.orf.at/magazin/daheiminnoe/****.html, and https://www.imdb.com/name/nm*4**0*9/ and the officially conducted ZMR inquiry regarding the complainant on December 16, 2022.

D. From a legal perspective, it follows:

D.1. Designation of the respondent

Although the complainant referred to Mr. Charles Tr***, Legal Counsel of Wikimedia Foundation, as the respondent in his complaint, a reasonable interpretation of the complaint suggests that it was directed against Wikimedia Foundation Inc. (cf. the decision of the VwGH dated April 28, 2021, Ra 2019/04/0138). The respondent also assumed that the complaint was directed against it.

D.2. Subject matter of the proceedings

According to Art. 57 para. 1 lit. f GDPR, the data protection authority must investigate the subject matter of the complaint to an appropriate extent. The "subject matter of the complaint" is the administrative matter defined in scope by the party's submission at the time of application (here: at the time of filing the complaint), which is the "matter under negotiation" according to § 59 para. 1 AVG. It

follows that the complainant is not free to expand the subject matter of the complaint with new submissions during the ongoing proceedings. Therefore, the subject matter of the proceedings is exclusively the deletion of the entry about the complainant on the platform of the respondent (cf. initiating submission dated February 14, 2019, and improvement dated February 21, 2019). According to § 13 Abs. 8 second sentence AVG, the amendment of the application must not change the essence of the matter and must not affect the substantive and local jurisdiction. The Administrative Court has also decided in its ruling of May 26, 2021, Ra 2019/04/0071, that it may only decide on an amendment of the application within the framework of § 13 Abs. 8 AVG if the essence of the matter is not changed and the limits of the subject of the complaint are not exceeded (see also Köhler, § 28 VwGVG, in: Köhler/Brandtner/Schmelz [eds.], VwGVG Commentary [2021] Rz. 41). The articles linked by the applicant in the statement of January 13, 2021, regarding individual films in which he participated, are not the subject of the complaint in this proceeding. The subject of the complaint is clearly evident from the initiating submission.

D.3. Regarding the applicability of the GDPR and the jurisdiction of the Data Protection Authority
The respondent is a non-profit foundation based in the USA. The USA is to be considered a third country in the context of European law. The respondent operates an online encyclopedia, on which personal data (first and last name, date of birth, career, filmography) of the applicant are processed automatically. At the time of the issuance of the decision, the respondent, as an umbrella organization, has 38 associations (referred to by the respondent as branch associations), of which at least one is located in Austria (see point 1 of the findings).

According to Art. 3 Abs. 2 lit. a GDPR, the GDPR applies to the processing of personal data of data subjects who are in the European Union by a controller not established in the Union, if the data processing is related to the offering of goods or services to a data subject in the Union, regardless of whether a payment is to be made by that data subject.

The respondent itself offers Austrian website visitors information on a variety of topics through its online encyclopedia. The (Austrian) users access information about the applicant, which is presented in German, via the respondent's website. The term service is not defined in detail in the GDPR but is to be interpreted very broadly. It is evident that the respondent offers information services and has also targeted these at the Austrian market ("market location principle"). Furthermore, Art. 3 Abs. 2 lit. a second sentence GDPR explicitly states that the issue of whether the service is provided for a fee or free of charge is irrelevant (a search engine operator typically does not require a fee from the end consumer for providing information, see Ernst in Paal/Pauly, GDPR Art. 3 Rz 17).

According to Art. 3 para. 2 lit. a GDPR, data processing must be related to an offer of goods or services "in the Union." Although the wording does not refer to "directing" as was required in the earlier version of the Commission's proposal ("directed to") and an earlier draft proposal of the Parliament ("aimed at"), it is clear from Recital 23 that the offer must be aimed at affected persons located in the Union in accordance with the principle of market location (see Klar in Kommentar Kühling/Buchner 2017).

The CJEU holds in the case of Pammer/Reederei Karl Schlüter GmbH & Co and Hotel Alpenhof/Heller (joined cases C-585/08 and C-144/09) that the individual components must always be considered as a whole and that, among other things, the endings of the top-level domain address, the use of a language, the location of the customer base, and the facilitation of access to the website are to be regarded as essential factors. The linguistic design of the information service can, according to Recital 23, be an indication of offering for the European (specifically the Austrian) market.

The respondent has a total of 38 national associations, some of which are based in the European Union (including Austria, France, Germany, Belgium, and Sweden). The individual national websites either directly or through an intermediary link to the homepage of the respondent. Due to the structure and close interconnection of the websites of the national branches and those of the respondent, there is undoubtedly a facilitation of access.

If the name of the complainant is entered on the website aimed at the Austrian market "http://wikipedia.at," which is also equipped with the country-specific top-level domain ending ".at,"

there is an automatic redirection to https://de.wikipedia.org/wiki/Walter_A***. It is not denied by the data protection authority that the Austrian site is registered to the organization Wikimedia Österreich Gesellschaft zur Förderung freien Wissens, which is a branch in the form of an association of the respondent in Austria. However, this clearly demonstrates the close interconnection of the (branch) associations of the respondent with the respondent itself and the accompanying goal of facilitating access for Austrian users. Due to the automatic redirection (after entering a search term) from "<http://wikipedia.at>" to <https://de.wikipedia.org>, no further intermediary steps need to be taken by the website visitor.

Additionally, the article about the complainant is only available in two languages (German and ***ish). Thus, the information service regarding the complainant is clearly aimed at the German-speaking area, and not merely at the US market. The film productions in which the complainant has participated are also marked with a reference to Austria.

It should be emphasized that the website of the complainant is not accessible in English, which is the official language of the country where the respondent is headquartered. Thus, information is specifically tailored to individual countries or regions.

From these individual points, it is evident that the respondent clearly intends to attract Austrian users for its information service. Internet users are also deliberately redirected from the website with the ".at" domain ending (from a nationally established association of the respondent) to their own homepage. The material and territorial scope is present, and the GDPR is therefore applicable.

D.4. Regarding the Responsibility Characteristic

The determination of the distribution of data protection roles is crucial for the complaint procedure under § 24 DSG or Art. 77 para. 1 GDPR, as it determines who is responsible for compliance with the respective data protection regulations.

According to Art. 4 No. 7 GDPR, the "controller" is the natural or legal person, authority, institution, or other body that alone or jointly with others determines the purposes and means of processing personal data.

A key criterion is the decision-making component. The role of the controller thus primarily arises from the fact that a specific entity has decided to process personal data for its own purposes. The "purpose" describes an expected outcome, while the "means" define how the expected outcome is to be achieved (cf. Art. 29 Data Protection Working Party, Opinion 1/2010 on the terms "controller" and "processor," WP 169, still in relation to Art. 2 lit. d of the Data Protection Directive 95/46/EC).

Crucial for the assignment of responsibility is therefore who decides on the essential aspects of the means of processing. For the attribution of the responsibility characteristic, it is not necessary for the controller to process data themselves, to be in possession of the processed data, or to have physical control. If they make the decision that data is to be processed, all persons and entities functionally attributable to them who carry out steps of data processing under their supervision or instruction (auxiliary organs) are included.

In this context, the respondent states in its response dated April 28, 2021, that it is not the controller regarding the content.

It must be countered that the respondent states in the same response that it is responsible for raising funds, controlling the servers, developing the software, and public relations to support all its projects – logically also for its website – and that it intervenes directly in cases where quick action is required, i.e., in cases of copyright infringements, child protection, blocking IP addresses, or when the safety of individuals is at risk, and also mediates in conflicts where the community (consisting of users and administrators) cannot find a solution on the platform itself. Administrators are elected by the community of users. They have – as explained under point 2 of the findings – normal (creating, correcting, supplementing, and deleting posts) and extended rights (right to delete and secure irrelevant posts, blocking users). The administrators and also the other contributors (remaining users) have no employment relationship or other contractual relationship with the respondent.

Therefore, the respondent is to be qualified, especially in light of the administrators who also decide on the purposes and means, at least as a joint data protection controller under Art. 4 No. 7 GDPR.

D.5. Applicability of the Media Privilege

Regarding the assertion of the lack of jurisdiction of the Data Protection Authority in the respondent's response dated October 4, 2021, it should first be noted that if the conditions of § 9 para. 1 DSG are met, legal protection is only possible through the ordinary courts according to the Media Act, and there is no jurisdiction of the Data Protection Authority.

The national regulation in § 9 DSG refers to Art. 85 GDPR, a fundamental provision with an opening clause (cf. Suda/Veigl in Gantschacher/Jelinek/Schmidl/Spanberger, Data Protection Act1 § 9 Rz. 1, still in relation to § 9 DSG as amended by Federal Law Gazette I No. 165/1999 as amended by Federal Law Gazette I No. 120/2017 [Data Protection Adjustment Act 2018]).

Art. 85 GDPR regulates the processing and freedom of expression and information and stipulates in para. 1 that "the provisions of the DSG as well as the more specific chapters of the GDPR do not apply to the processing of personal data by media owners, publishers, media employees, and employees of a media company or media service within the meaning of the Media Act – MedienG, Federal Law Gazette No. 314/1981, for journalistic purposes of the media company or media service (...)."

According to the consistent case law of the Data Protection Authority, two conditions must be cumulatively met for the application of the media privilege: First, there must be processing of personal data by media owners, publishers, media employees, and employees of a media company or media service within the meaning of the Media Act, and second, this processing must be for journalistic purposes of the media company or media service.

occur (see, among others, the decision of December 2, 2019, GZ: DSB-D124.352/0003-DSB/2019, as well as from December 18, 2019, GZ: DSB-D123.768/0004-DSB/2019). It can therefore be assumed that legal protection is only possible through the ordinary courts under the Media Act (MedienG) if both conditions of § 9 para. 1 DSG are met, and that there is no jurisdiction of the Data Protection Authority (see the decision of the DSB from August 13, 2018, GZ: DSB-D123.077/0003-DSB/2018). In all other cases, the Data Protection Authority is responsible for substantive treatment but must consider the right to freedom of expression under Art. 11 EU Charter of Fundamental Rights (EU-GRC) and Art. 10 European Convention on Human Rights (EMRK) in the context of the balancing process.

According to § 1 para. 1 no. 1 MedienG, a "medium" is understood to be any means of disseminating messages or presentations with intellectual content in words, writing, sound, or images to a larger audience through mass production or mass distribution. According to § 1 para. 1 no. 6 MedienG, a "media company" is a company that is responsible for the content design of the medium as well as its production and distribution (no. 1 leg. cit.) or its broadcasting or accessibility (no. 2 leg. cit.). According to § 1 para. 1 no. 11 MedienG, a "media employee" is an employee who contributes journalistically to the content design of a medium or messages of the media service in a media company or media service, provided that he or she exercises this journalistic activity continuously and not merely as an economically insignificant secondary occupation as an employee of the media company or media service or as a freelancer.

The Supreme Court (OGH) states in its consistent case law, among other things, in its decision 6 Ob 6/14x of December 15, 2014, that a media entrepreneur within the meaning of § 1 para. 1 no. 6 MedienG only becomes a media entrepreneur when he or she operates a company – with a minimum level of entrepreneurial structures – whose corporate purpose is the content design of the website, which is carried out by an editorial team and a number of employees or freelance media workers (see RIS-Justiz RS01298 and Noll in Berka/Höhne/Noll, Mediengesetz³ [2012] § 1 Rz 25, 48).

As stated in point 2 of the findings, the respondent does not have an editor-in-chief, an editorial board, an administrative office, or a similar institution. Likewise, the respondent does not review, control, or decide which contributions users publish on the website "www.wikipedia.org." This is done solely by the users of the website themselves. Only in the few cases of "Office Actions," where the "normal community editing process" cannot be applied due to the need for rapid action, does the respondent intervene. These are exceptional cases that concern child protection, copyright issues, or disputes that escalate to a level that the community of users cannot resolve on its own.

The latter is also the subject of the complaint. The issue could not be resolved within the "community," and for this reason, the complainant has submitted a complaint directly against the respondent. In

advance, neither the content of the contribution was researched nor prepared by the respondent. This was all done by the complainant or other users.

From the above, it follows that the respondent does not carry out editorial activities. On the one hand, because the corresponding structures – as stated by the respondent itself in its statement of April 28, 2021 – do not exist (no editor-in-chief, editorial board, or similar), and on the other hand, also – apart from a few exceptional cases of Office Actions – the contributions are created, revised, and deleted by the users of the website themselves. Thus, fundamentally, neither the content is authored by the respondent nor is it controlled by them. The individual contributions of the websites are created, modified, or deleted by the users, as the respondent has detailed throughout the entire proceedings, who moreover do not have any contractual or employment relationship with the respondent. The community forms its own "ecosystem," into which the respondent fundamentally does not intervene – except in the aforementioned exceptional cases. Editorial processing or final approval of the individual published articles is fundamentally not carried out by the respondent or by persons attributable to them at any time.

Since the one who is understood as the media owner is the one who has the content and editorial ultimate responsibility for the content disseminated over the network (see OGH 4 Ob 226/05x of January 24, 2006), it must be stated that the respondent is not involved in the content design, which means that it lacks the essential qualification to be classified as a media owner. This qualification, which is not present in this case, is also required for liability under the Media Act. This also applies to the electronic domain (Litzka/Strebinger, MedienG5 § 1 Rz 17 mwN).

In summary, it follows from the investigation that the respondent only provides the financial, technical, and structural prerequisites for the users.

however, is not involved in the content design of the encyclopedia, which comprises over two million articles on various topics in the German language.

Thus, the first requirement of § 9 para. 1 DSG ("the processing of personal data by media owners, publishers, media employees, and employees of a media company or media service within the meaning of the Media Act") is not met, and it can remain open whether the second requirement is present.

As a result, § 9 para. 1 DSG does not apply. Consequently, there is jurisdiction for the data protection authority to handle the complaint (see also the decision of December 18, 2019, GZ:

DSB-D123.768/0004-DSB/2019).

D.6. Compliance with the Principles of Data Processing

When processing personal data, all principles of data processing mentioned in Art. 5 GDPR must be adhered to. The complainant objects that the registered data does not correspond to factual accuracy or is not up to date (see Art. 5 para. 1 lit. d GDPR). The principle of accuracy obliges the controller to ensure that the data is, on the one hand, factually correct and, on the other hand, kept up to date as necessary. Regarding factual accuracy, only statements of fact can be applied, and no value judgments. The personal data provided by the complainant concerning his name, date of birth, marital status, artistic occupation (filmmaker, director, cameraman, and author), as well as his career path, are accurate and have not been disputed by him in the course of the investigation.

Concerning the listed works, he stated in his submissions of January 13, 2021, and April 9, 2021, that the titles mentioned are incorrect and that the latest works have not been registered. It should be noted that the listed titles are accurate; however, the fictitious name of the main actor [Note by the editor: presumably referring to the main character] has been added. This is evidently intended to give the respective website user the option to click either on the film title or on the name of the fictitious film character. This redirects the user to two different entries: one for the film entry, which also lists the original film title ([https://de.wikipedia.org/wiki/J***\(Film\)](https://de.wikipedia.org/wiki/J***(Film))), and the other for the entry about the fictitious film character (see https://de.wikipedia.org/wiki/N***). Thus, no inaccuracy can be established in this context. This is part of the structural design of the website, aimed at providing the respective user with more information. As a result, there are also no data that can be classified as false, untrue, inaccurate, or misleading.

Regarding the complainant's assertion about the incompleteness of his entry, it should be explained that this must be assessed in the overall context, taking into account all circumstances. The specific processing context must be considered. The legal obligation of the controller to complete the data exists only in those cases where the added information is actually relevant to the processing process to ensure the objective accuracy of the data.

The purpose in question is to prepare general information about the complainant, which meets the internal relevance criteria, for the users of the respondent's website. However, this does not mean that all works in which the complainant has participated must be exhaustively listed; rather, a summary of the filmography is sufficient to adequately fulfill the processing purpose. Furthermore, there is no inaccurate portrayal of the complainant that would need to be corrected by adding further data (see Herbst in DS-GVO Kommentar Kühling Buchner 2017). Moreover, it is also noted in the entry itself that the filmography is only a selection (see point 4 of the findings).

Thus, there has also been no violation of the processing purpose in the sense of Art. 5 para. 1 lit. d GDPR.

D.7. Right to Deletion

D.7.1. General

In the proceedings, the complainant asserted that his right to deletion under Art. 17 GDPR has been violated.

According to Art. 17 GDPR, a data subject has the right to request the immediate deletion of personal data concerning them from the controller, provided that one of the conditions mentioned in para. 1 is fulfilled.

However, the right to deletion under Art. 17 para. 1 GDPR does not exist according to Art. 17 para. 3 lit. a GDPR to the extent that the processing is necessary for the exercise of the right to freedom of expression and information. The purpose of this exception is to prevent the freedom of expression and information, which forms an essential foundation of democracy, from being undermined by invoking data protection (see Koreng/Feldmann ZG 2012, 311). The exception is not limited solely to the field of journalism or "professional" media but also includes expressions of opinion in the non-professional sector, such as by (occasional) bloggers or on social media. There is no regulation that would grant absolute priority to freedom of expression and information over the fundamental right to data protection, and such a regulation would also not be compatible with the Charter of Fundamental Rights. The involved rights are therefore to be weighed against each other in their respective significance and according to the degree of their jeopardy.

to weigh. Such a weighing also provides for the opening clause of Art. 85 GDPR for national legislators. Therefore, in accordance with Art. 6 para. 1 lit. f GDPR, an assessment of the legitimate interests of the respondent (as an information service provider) and third parties (the public, which uses the information service) must be carried out, and these must be weighed against the interests and possible consequences for the complainant arising from the processing in question.

In the weighing, the rights of the affected person must be taken into account, which are guaranteed by Art. 7 and 8 EU Charter of Fundamental Rights (EU-CFR) as well as Art. 8 European Convention on Human Rights (ECHR), namely the rights to respect for private and family life and to the protection of personal data, and on the side of the data controller or third parties, the fundamental right to freedom of expression and information according to Art. 11 para. 1 EU-CFR and Art. 10 para. 1 ECHR.

The European Court of Human Rights (ECtHR) and subsequently the Court of Justice of the European Union (CJEU) have developed a number of relevant criteria for the purposes of weighing between the right to respect for private life and the right to freedom of expression in their case law (see, for example, the judgment of the ECtHR of February 7, 2012, 39954/08 [Axel Springer v. Germany] or the judgment of the CJEU of February 14, 2019, C-345/17 [Buivids]). Accordingly, the following criteria should be included in such a weighing:

- The role of the affected person in public life and the public's interest in the information;
- The factual accuracy of the published information;
- The purpose and context of the publication;

- The nature of the affected information, in particular its sensitivity to the private life of the affected person, and the likelihood or actual occurrence of material or immaterial harm due to the data processing; as well as
- The time elapsed since the publication of the data.

The weighting of these criteria must be carried out on a case-by-case basis and depends on the specific circumstances of the respective case.

Therefore, a weighing of the legitimate interests of the respondent and third parties (the public, which consults the respondent's encyclopedia) on the one hand and the interests of the complainant on the other hand must be carried out.

The interest of the respondent lies in operating an online encyclopedia that provides information services to the public. The interest of the public is to use this information service offered free of charge (see the decision of the Data Protection Authority of January 15, 2019, GZ: DSB-D123.527/0004-DSB/2018, which states that the right to freedom of expression and information enshrined in Art. 11 EU-CFR is established).

In contrast, the interest of the complainant is that his data be deleted from the respondent's website.

The Data Protection Authority notes in this context that the complainant is a person of public life who is known to a broad public. An indication of "publicity" is when information about a person's public role and activities can be found. In general, it can be said that a person of public life is a natural person about whom media reports are made due to their functions or obligations (see Art. 29 Data Protection Working Party, Guidelines for the Implementation of the Judgment of the Court of Justice of the European Union in Case C-131/12, WP 225, p. 16). The Federal Administrative Court has also stated that individuals who are reported on in the media due to their function/obligations are to be considered persons of public life (decision of May 20, 2021, GZ W214 2232956-1 with references).

The complainant is a filmmaker, director, cameraman, and author (see point 1 of the findings). It is undisputed that he therefore meets the qualification for a person of public life.

As already stated under D.6. of the legal assessment, these are also not data that can be classified as false, untrue, inaccurate, or misleading.

All information published on the respondent's website about the complainant is available online on various other websites, including that of the complainant himself, for anyone to access. The Austrian Broadcasting Corporation also reports on the complainant (see point 7 of the findings).

The intensity of the interference is to be classified as low due to the nature and disclosure of the information in question by the respondent about the complainant.

D.7.2. Result

In light of all these considerations, the Data Protection Authority concludes that the legitimate interests of the public according to Art. 11 EU-CFR in access to information outweigh the stated impairments of the legitimate interests of the complainant.

The conditions of Art. 17 para. 3 lit. a GDPR are therefore fulfilled, which is why the respondent rightly did not comply with the complainant's request.

Consequently, there is no violation of the right to deletion, which is why a decision in accordance with the law was to be made.